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File No.: EXP202405899

RESOLUTION OF TERMINATION OF THE PROCEDURE BY RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On January 29, 2025, the Presidency of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against EDA TV CONSULTING, S.L. (hereinafter, EDA TV), through the agreement that is transcribed:

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File No.: EXP202405899

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for the Protection of Data and based on the following

FACTS

FIRST: On March 5, 2024, a complaint was filed with the Spanish Agency for the Protection of Data for a possible infringement attributable to EDA TV CONSULTING, S.L. with NIF B88605266 (hereinafter, EDA TV).

Based on the statements made by the complainant, the following circumstance is highlighted in relation to the website <https://edatv.news/>, among others:

- That in the privacy policy it is stated that to exercise rights it will be necessary to provide a copy of the ID card.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to EDA TV, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The notification of the transfer of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on April 26, 2024, as evidenced by the acknowledgment of receipt in the file.

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On May 22, 2024, a response was received by this Agency indicating, among other points, the following:

"1. The fact that the EDA TV portal requires a copy of the ID card to exercise rights, as stated in its privacy policy: <https://www.edatv.news/politica-privacidad>

Regarding this first point, for the exercise of data protection rights, EDA TV requests users (...) to send an email to the address estadodealarmatv@gmail.com indicating the reason for the request for the specific right that the user wishes to exercise and providing a copy of their ID card.

In this regard, it is important to refer to Recital 64 of the General Data Protection Regulation ("GDPR") where the following is stipulated:

'The data controller must use all reasonable measures to verify the identity of data subjects who request access, particularly in the context of online services and online identifiers (...).'

Considering that in this type of website different circumstances may arise that hinder or make it impossible for the holders to identify each of the users who register/contact/provide any type of personal data through any of their forms (...) it seems, in our understanding, pertinent to request the provision of a copy of the ID card solely and exclusively for the purpose of correctly and unequivocally

identifying that user and carrying out the exercise of this right exercised by them in the most compliant manner possible with the current regulations on data protection.

That is to say, we understand that the request for this information (copy of the ID card) from users for the specific case of correctly exercising a data protection right exercised by these same users corresponds to 'a reasonable measure to identify the identity of users requesting this exercise of rights within the context or environment of online services' (...) and, therefore, we consider the request and processing of this data and personal information to be lawful, proportionate, and pertinent in application, precisely, of this Recital 64 of the GDPR. (...)”

THIRD: On June 5, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity EDA TV is a company established in 2020, with a business volume of ***AMOUNT.1 euros in 2023.

LEGAL GROUNDS

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will become void, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

III

Preliminary Issues

The data contained in the image of the ID card on both sides is considered personal data, the processing of which is subject to the regime provided for in the GDPR, as well as its implementing provisions, in accordance with Articles 4.1 and 4.2 of the GDPR, which states the following:

“Article 4 Definitions For the purposes of this Regulation, the following definitions shall apply:

- 1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
- 2) ‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction; (...)

In the present case, in accordance with Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since EDA TV carries out, among other processing activities, the collection and storage of personal data of natural persons: a copy of the ID card. EDA TV carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Obligation Breached. Data Minimization

Letter c) of Article 5.1 of the GDPR states:

“1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

In the present case, EDA TV acknowledges in its letter dated 22/05/2023 the following:

“for the exercise of data protection rights, EDA TV requests users (specifically, in section 6 of the privacy policy available on its portal/website <https://www.edatv.news/politica-privacidad>) to send an email to the address estadodealarmatv@gmail.com indicating the reason for the request for the specific right that the user wishes to exercise and providing a copy of their ID card.”

They justify their course of action in Recital 64 of the GDPR, which states:

“The data controller must use all reasonable measures to verify the identity of data subjects who request access, particularly in the context of online services and online identifiers (...).”

EDA TV indicates that the request for this information (copy of the ID card) from users for the exercise of a data protection right is a reasonable measure to verify the identity of users and, therefore, the request and processing of this data and personal information is lawful, proportionate, and relevant. However, the processing of personal data of individuals wishing to exercise their data protection rights against EDA TV must be governed by the principles outlined in Article 5 of the GDPR. Notably, due to its relevance to the present case, is the so-called “Data Minimization Principle” provided for specifically in Article 5.1.c. of the GDPR.

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It must be taken into account that the image or photocopy of the applicant's ID card (on both sides), passport, or other identity documents contains personal data that exceeds what is necessary for identification, such as: the image, the equipment number, or the names of the parents, for which there is no obligation for identification.

The obligation of identification can be fulfilled without the need to request the delivery or scanning of such a copy or image of the ID card, as there are other equally valid alternatives that allow for this verification to be carried out reliably.

Given the circumstances, it is understood that the request for the delivery of a photocopy or image of the identity document of the applicant of their rights is indiscriminate and constitutes excessive processing of personal data for which EDA TV is not authorized under the GDPR, as they are inadequate, irrelevant, and unnecessary for the specific purpose of the processing in question (exercise of rights).

Therefore, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to EDA TV, for violation of the article transcribed above.

V

Classification of the infringement of Article 5.1.c) of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following articles, which will be sanctioned, in accordance with paragraph 2, with administrative fines of up to

20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- "a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22;
- c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;
- d) any obligation under the law of the Member States adopted in accordance with Chapter IX;
- e) the failure to comply with a decision or a temporary or definitive limitation of processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to provide access in violation of Article 58, paragraph 1."

For its part, the LOPDGDD in its Article 71, Infringements, states that:

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"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the sole purposes of the prescription period, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

- a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VI

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

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i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the responsible party or the processor in relation to the same matter, the compliance with such measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The link between the infringer's activity and the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the turnover of EDA TV is considered ***AMOUNT.1 euros in the year 2023.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.c) of the GDPR, allows for an initial administrative fine of 5,000.00 euros to be set.

VII

Corrective Measures

If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.c) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, whereby each supervisory authority may “order the responsible party or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”

Thus, the responsible entity may be required to adjust its actions to the personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could give rise to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the responsible party who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment regarding the initiation of the sanctioning procedure, the resolution adopted may require EDA TV to adopt the following measures within ONE MONTH, starting from the date of enforceability of the resolution concluding this procedure:

- To demonstrate the adoption of the necessary measures to ensure compliance with the provisions of Article 5.1.C of the GDPR. In any case, the identification method must be reflected in the privacy policy.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,

IT IS AGREED:

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FIRST: TO INITIATE SANCTIONING PROCEDURE against EDA TV CONSULTING, S.L., with NIF B88605266, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be an administrative fine of 5,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to EDA TV CONSULTING, S.L., with NIF B88605266, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 4,000.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 4,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 3,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the

express withdrawal or renunciation of any administrative action or appeal against the sanction.

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For these purposes, in the event of opting for any of them, they must send to the General Subdirector of Data Inspection an express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction, indicating which of the two reductions they are opting for or if it is for both.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (4,000.00 euros or 3,000.00 euros), they must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are adhering.

They must also send the proof of payment to the General Subdirector of Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

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Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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SECOND: On February 3, 2025, EDA TV proceeded to pay the sanction in the amount of 3,000.00 euros, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the initiation agreement and its legal qualification.

THIRD: The initiation agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at €3,000.00, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, EDA TV proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure shall decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of €5,000.00.

After EDA TV CONSULTING, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, resulting in a final amount of €3,000.00.

The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or

waiver of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202405899, in accordance with the provisions of Article 85 of the LPACAP.

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THIRD: ORDER EDA TV CONSULTING, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution, within a period of 1 month from the date this resolution becomes final and enforceable.

FOURTH: NOTIFY this resolution to EDA TV CONSULTING, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution shall be final in the administrative pathway and fully enforceable from the date of its notification. In accordance with the provisions of Article 50 of the LOPDGGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sede.aepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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